

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----x
MICHAEL ROOPCHAND,

Plaintiff,

-against-

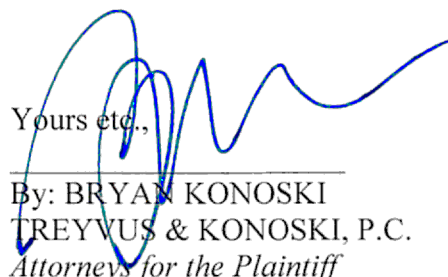
Index No.:Plaintiff designates
Queens County as
place of trial.
The basis of Venue is
the location of the incident
(CPLR 504(3)).**SUMMONS**THE CITY OF NEW YORK,
DEPUTY INSPECTOR DEODAT URPRASAD,
SGT. CHRISTOPHER WINIARZ,
SGT. KEVIN BISCHOFF,
P.O. "JOHN DOE" #1-10,
(the name "John Doe" being fictitious, as the true names
are presently unknown), individually and in
their official capacity,Defendants.
-----xThe Plaintiff resides at:
94-06 125TH Street
So Richmond Hill, NY 11419

To the above named Defendant:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this summons, to serve a Notice of Appearance, on the Plaintiffs' attorney (s) within 20 days after the service of this summons, exclusive of the day of the service (or within 30 days after the service is completed if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 23, 2018

Yours etc.,


By: BRYAN KONOSKI
TREYVUS & KONOSKI, P.C.
Attorneys for the Plaintiff
305 Broadway, 14th Floor
New York, NY 10007
(212) 897-5832

Defendants' Addresses:

CITY OF NEW YORK

100 Church Street

New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----x **Index No.:**
MICHAEL ROOPCHAND,

Plaintiff,

VERIFIED COMPLAINT

-against-

JURY TRIAL DEMANDED

THE CITY OF NEW YORK,
DEPUTY INSPECTOR DEODAT URPRASAD,
SGT. CHRISTOPHER WINIARZ,
SGT. KEVIN BISCHOFF,
P.O. "JOHN DOE" #1-10,
(the name "John Doe" being fictitious, as the true names
are presently unknown), individually and in
their official capacity,

Defendants.

-----x
Plaintiff, MICHAEL ROOPCHAND, by his attorney, TREYVUS & KONOSKI, P.C.,
complaining of the defendants, respectfully allege as follows:

PARTIES

1. Plaintiff, MICHAEL ROOPCHAND, is a citizen of the United States and at all relevant times he was a resident of the City and State of New York.
2. THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. THE CITY OF NEW YORK, maintains the New York City Police Department, a duly organized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK.

4. That at all times hereinafter mentioned, the individually named defendants, DEPUTY INSPECTOR DEODAT URPRASAD, SGT. CHRISTOPHER WINIARZ, SGT. KEVIN BISCHOFF, P.O. "JOHN DOE" #1-10, were duly sworn police officers of the New York City Police Department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York or THE CITY OF NEW YORK.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant, CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant, CITY OF NEW YORK.

FACTS

8. In or about April of the year 2017, in front of 94-06 125th Street in South Richmond Hill, NY, 11419, Queens County (the "property"), the Plaintiff and a number of his friends were on the property watching a parade across the street.

9. At the above date and time, DEPUTY INSPECTOR DEODAT URPRASAD, SGT. CHRISTOPHER WINIARZ, SGT. KEVIN BISCHOFF, and P.O. "JOHN DOE" #1-10, approached the Plaintiff and his friends, illegally entered the property without any legal right or authority, and accused the Plaintiff and two (2) of his friends of drinking alcohol from an open alcohol container.

10. The Plaintiff and his friends were arrested for drinking alcohol from an open alcohol

Container, or for otherwise being in possession of an open alcohol container in public.

11. The Plaintiff's friends were not drinking alcohol from an open alcohol container, nor were they in possession of an open alcohol container in public.

12. There were no open alcohol containers in public view.

13. The Plaintiff was arrested, placed in handcuffs, and taken into custody by the defendant police officers.

14. Upon information and belief, DEPUTY INSPECTOR DEODAT URPRASAD placed the Plaintiff into physical custody and placed handcuffs on the Plaintiff.

15. The Plaintiff was charged with a crime and/or violation of the New York State Penal Law for being in possession of an open alcohol container in a public place. However, this charge was fabricated by the Defendant police officers. The Plaintiff was not in possession of an open alcohol container.

16. The Plaintiff was in custody for approximately 24 hours.

17. The charges against the Plaintiff were dismissed.

18. As a result of the foregoing, plaintiff sustained, inter alia, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment and humiliation, shame, indignity, damage to reputation, and deprivation of her constitutional rights.

FEDERAL LAW CAUSES OF ACTION

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983

19. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "18" with the same force and effect as if fully set forth herein.

20. All of the aforementioned acts of defendants, their agents, servants and employees

were carried out under the color of law.

21. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America and in violation of 42 U.S.C. § 1983.

22. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all the actual and/or apparent authority attendant thereto.

23. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

24. Defendants collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C § 1983

25. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "24" with the same force and effect as if fully set forth herein.

26. As a result of defendants' aforementioned conduct, the plaintiff was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, and incarcerated by the defendants without any probable cause, privilege or consent.

27. As a result of the foregoing, plaintiff's liberty was restricted for an extended

period of time, and plaintiff was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints, all without probable cause, and plaintiff sustained, inter alia, loss of enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment and humiliation, shame, indignity, damage to reputation, and deprivation of his constitutional rights.

THIRD CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

28. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “27” with the same force and effect as if fully set forth herein.

29. Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiff.

30. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff.

31. Defendants acted with malice in initiating criminal proceedings against Plaintiff.

32. Defendants were directly and actively involved in the continuation of criminal proceedings against Plaintiff.

33. Defendants lacked probable cause to continue criminal proceedings against Plaintiff.

34. Defendants acted with malice in continuing criminal proceedings against Plaintiff.

35. Notwithstanding the conduct of the Defendants, the criminal proceedings were terminated in Plaintiff's favor when all criminal charges against him were dismissed.

36. As a result of the foregoing, Plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

FOURTH CLAIM FOR RELIEF
FAILURE TO INTERVENE UNDER 42 U.S.C. § 1983

37. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “36” with the same force and effect as if fully set forth herein.

38. One or more of the defendant police officers each knew that the Plaintiff was unlawfully stopped and arrested the Defendants. Despite knowing that the Plaintiff was stopped and arrested without reasonable suspicion or probable cause, these defendants failed to stop the false arrest, malicious prosecution, and civil rights violations against the Plaintiff.

39. As a result of the foregoing, Plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

FIFTH CLAIM FOR RELIEF
UNLAWFUL SEARCH AND SEIZURE (OF PROPERTY) UNDER 42 U.S.C § 1983

40. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered “1” through “39” with the same force and effect as if fully set forth herein.

41. That the defendant police officers entered the property without reasonable suspicion or probable cause to believe a crime had taken place, and without any lawful authority to enter the property.

42. Entering the property and searching the property or inspecting any areas of the property was objectively unreasonable and in violation of each of the plaintiff’s constitutional rights.

43. As a result of the foregoing, the plaintiff was humiliated, embarrassed, and suffered loss of property, loss of use and enjoyment of his property, and incurred monetary costs.

SIXTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

44. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered “1” through “43” with the same force and effect as if fully set forth herein.

45. Defendants including THE CITY OF NEW YORK and all of the defendant police officers subjected the Plaintiff to a false arrest and malicious prosecution as set forth in the aforementioned causes of action.

46. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials with all the actual and/or apparent authority attendant thereto.

47. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of THE CITY OF NEW YORK, all under the supervision of ranking officers of the New York City Police Department.

48. The aforementioned customs, policies, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, include but are not limited to the following unconstitutional practices:

- (a) Failing to properly train, in general;
- (b) Failing to supervise police officers;
- (c) Subjecting persons to violations of their constitutionally protected rights;
- (d) Subjecting persons to false arrest;
- (e) Subjecting persons to the excessive use of force.

49. The existence of the aforesaid unconstitutional customs and policies may be inferred from the actions taken by the defendant police officers.

50. The foregoing customs, policies, usages, practices, procedures and rules of the THE CITY OF NEW YORK and the New York City Police Department constituted a deliberate indifference to the safety, well-being, and constitutional rights of the Plaintiffs.

51. The foregoing customs, policies, usages, practices, procedures and rules of the THE CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

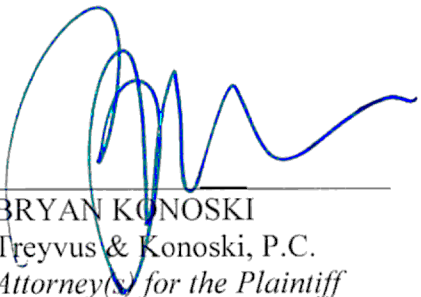
52. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers and were directly responsible for the violation of plaintiffs' constitutional rights, for which THE CITY OF NEW YORK is liable.

DAMAGES AND RELIEF REQUESTED

WHEREFORE, plaintiff demands judgment against the Defendants pursuant to the federal causes of action above, in the sum of FIVE MILLION DOLLARS (\$5,000,000.00) in compensatory damages, and FIVE MILLION DOLLARS (\$5,000,000.00) in punitive damages, plus attorney's fees, costs and disbursements of this action, and with interest at the legal rate from the date the cause of action accrued.

Dated: New York, NY
November 23, 2018

By:



BRYAN KONOSKI
Treyvus & Konoski, P.C.
Attorney(s) for the Plaintiff
305 Broadway, 14th Floor
New York, NY 10007
(212) 897-5832

Defendants' Addresses:
CITY OF NEW YORK
100 Church Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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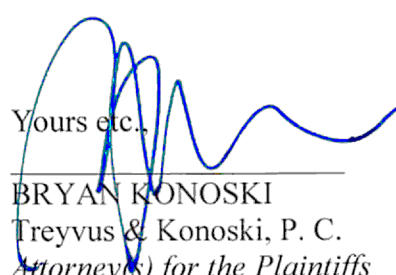
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**NOTICE OF COMMENCEMENT OF ACTION
SUBJECT TO MANDATORY ELECTRONIC FILING**

PLEASE TAKE NOTICE that the matter captioned above, which has been commenced by filing of the accompanying documents with the County Clerk, is subject to mandatory electronic filing pursuant to Section 202.5-bb of the Uniform Rules for the Trial Courts. This notice is served as required by Subdivision (b)(3) of that Section.

For information about electronic filing, including access to Section 202.5-bb, consult the website of the New York State Courts Electronic Filing System ("NYSCEF") at www.nycourts.gov/efile or contact the NYSCEF Resource Center at 646-386-3033 or efile@courts.state.ny.us.

Dated: New York, N.Y.
November 23, 2018

By:


Yours etc.,

BRYAN KONOSKI
Treyvus & Konoski, P. C.
Attorney(s) for the Plaintiffs
305 Broadway, 14th Floor
New York, N.Y. 10007
(212) 897-5832

Defendants' Addresses:
CITY OF NEW YORK
100 Church Street
New York, NY 10007

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York, shows:

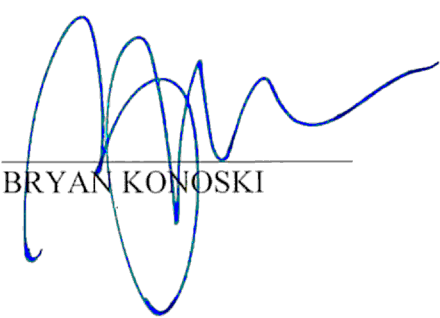
That deponent is a principal of the LAW OFFICES OF TREYVUS & KONOSKI, P.C., the attorneys of record for the plaintiffs in the within action; that deponent has read the foregoing Verified Complaint and knows the contents thereof; that the same is true to the deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, deponent believes them to be true. Deponent further says that the reasons this verification is made by deponent and not by plaintiffs, is that plaintiffs reside in a County other than that in which deponent maintains his offices.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which he has made or has caused to be made concerning the subject matter of this action, and statements of parties and/or witnesses made herein.

The undersigned affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, NY
November 23, 2018

By:



BRYAN KONOSKI

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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MICHAEL ROOPCHAND,

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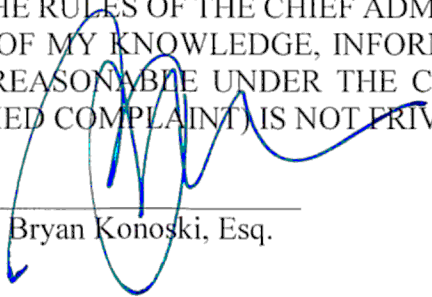
THE CITY OF NEW YORK,
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(the name "John Doe" being fictitious, as the true names
are presently unknown), individually and in
their official capacity,

Defendants.

-----x

SUMMONS AND VERIFIED COMPLAINT

PURUSANT TO SEC. 130.1.1 OF THE RULES OF THE CHIEF ADMINISTRATOR (22nycrr),
I CERTIFY THAT TO THE BEST OF MY KNOWLEDGE, INFORMATION AND BELIEF,
FORMED AFTER AN INQUIRY REASONABLE UNDER THE CIRCUMSTANCES, THE
WITHIN (SUMMONS AND VERIFIED COMPLAINT) IS NOT FRIVOLOUS.



Bryan Konoski, Esq.

TREYVUS & KONOSKI, P.C.
Attorneys for the Plaintiffs

305 Broadway, 14th floor
New York, N.Y. 10007
(212) 897-5832
Fax: (718) 668-1094